

STATE OF INDIANA)
) SS:
COUNTY OF LAKE) _____, INDIANA

SAMANTHA HUTCHINGS,)
)
) Plaintiff,
)
) v.) CAUSE NO.
)
AVERITT EXPRESS, INC. and)
DANIEL DIAZ, individually and as an)
employee, agent and/or servant of)
AVERITT EXPRESS, INC.,)
)
) Defendants.

COMPLAINT

Plaintiff, SAMANTHA HUTCHINGS (hereinafter "Samantha"), for her Complaint against AVERITT EXPRESS, INC. (hereinafter "AVERITT") and DANIEL DIAZ, individually and as an employee, agent and/or servant of AVERITT EXPRESS, INC., (hereinafter "DIAZ"), alleges and states as follows:

1. At all times relevant herein, AVERITT was and is an interstate motor carrier operating within the County of Lake, State of Indiana.

2. At all times relevant herein, DIAZ was employed as a professional truck driver working for the pecuniary benefit of AVERITT.

3. On February 11, 2022, DIAZ was a professional truck driver operating a 2020 Volvo tractor-trailer (hereinafter, "tractor-trailer rig") southbound on I-65 near mile marker 254.3 in Lake County, Indiana.

4. On February 11, 2022, DIAZ was operating the tractor-trailer rig under AVERITT'S motor carrier operating authority and displaying its logo and U.S. DOT number 36684.

5. On February 11, 2022, Samantha was driving southbound on I-65, near mile marker 254.3, in Lake County, Indiana.

6. At all times relevant herein, there was in full force and effect in the State of Indiana, Ind. Code § 8-2.1-24-18, a statute incorporating by reference, *inter alia*, Parts 390, 391, 392, 393, 395, and 396 of the Federal Motor Carrier Safety Regulations (hereinafter "FMCSRs").

7. On and before February 11, 2022, AVERITT and DIAZ were subject to the FMCSRs.

8. On and before February 11, 2022, AVERITT had a duty to act reasonably as a motor carrier.

9. On and before February 11, 2022, DIAZ had a duty to follow state traffic laws and to operate the tractor-trailer rig in a reasonable and safe manner as a professional truck driver should under the circumstances.

10. DIAZ violated I.C. § 9-21-8-11.5, which provided:

Whenever a roadway has been divided into two (2) or more clearly marked lanes for traffic, a vehicle: (1) shall be driven as nearly as practicable entirely between the lines marking the single lane; and (2) may not be moved from

the lane until the person who drives the vehicle has first ascertained that the movement can be made with safety.

11. On and before February 11, 2022, AVERITT and DIAZ breached the foregoing duties and were negligent, grossly negligent, willful, wanton, and/or reckless.

12. On February 11, 2022, as a direct and proximate result of the negligence, gross negligence, willfulness, wantonness, and/or recklessness of Defendants, and each of them, their tractor-trailer rig suddenly entered into Samantha's lane, and crashed into the side of Samantha's car as she safely traveled in her lawful lane of travel, and then propelled her car to crash into the barrier wall, and then crashed their tractor-trailer into her car again.

13. As a direct and proximate result of the foregoing crash and the conduct of AVERITT EXPRESS, INC. and DANIEL DIAZ, Samantha was physically injured, suffered disabling orthopedic injuries and broken bones, suffered emotional distress, and sustained other permanent and severe personal injuries; she incurred and will incur ambulance, hospital, diagnostic, surgical, therapeutic, pharmaceutical, and other medical expenses; she suffered and will suffer physical pain, mental suffering, terror, fright, loss of enjoyment of life, and permanent impairment; she lost time or wages and impairment of her earnings capacity; and Samantha incurred other injuries and damages of a personal and pecuniary nature.

14. At all times relevant herein, AVERITT exerted authority over DIAZ'S operation of the tractor-trailer rig, the means and methods employed by DIAZ in his work, and provided him with the equipment, including, but not limited to, the tractor-trailer and motor carrier authority necessary to accomplish his assigned tasks. As DIAZ'S employer and/or principal, AVERITT is vicariously liable for his negligence and conduct.

WHEREFORE, Plaintiff, SAMANTHA HUTCHINGS, seeks the entry of judgment in her favor and against Defendants, AVERITT EXPRESS, INC. and DANIEL DIAZ, for compensatory and punitive damages in an amount to be determined herein, prejudgment interest, for the costs of this action, and for any and all other relief that the Court and Jury may deem proper under the circumstances.

Respectfully submitted,

ALLEN LAW GROUP, LLC
Attorneys for Plaintiff

/s/Bryan L. Bradley

Bryan L. Bradley (17877-46)

JURY DEMAND

Plaintiff demands trial by jury on her Complaint.

Respectfully submitted,

ALLEN LAW GROUP, LLC
Attorneys for Plaintiff

/s/Bryan L. Bradley

Bryan L. Bradley (17877-46)



Reply to Office Indicated

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